

		the requested depositions to take place in Macao or Hong Kong, Shen’s requested relief is denied. In short, Shen cannot seek to compel discovery that he has not sought in a manner that complies with the Code. Alternatively, Shen asks that the Court order Tai Fung to designate David Shen and Justin Man as its persons most qualified on any topic. Shen cites no authority showing that this requested relief is proper or warranted. Shen has not attached any deposition notice served on Tai Fung that would require Tai Fung to designate a person most knowledgeable on specified topics or issues. Thus, this request is rejected. In light of the above, the Motion to Compel Deposition is DENIED. <u>Motion re: Issuance of Letters Rogatory for Service of Cross-Complaint</u> Shen requests the issuance of letters rogatory for service of the Cross-Defendants who reside in China pursuant to Code of Civil Procedure section 413.10(c). Section 413.10 provides that a summons may be served on a person outside the United States as directed by the foreign authority in response to a letter rogatory, if the court finds that the service is reasonably calculated to give actual notice. The section expressly states that these rules are subject to the Hague Service Convention. Letters rogatory are “formal request[s] from a court in which an action is pending, to a foreign court to perform some judicial act.” (22 C.F.R. § 92.54.) China is a signatory to the Hague Service Convention but has opposed Articles 10(b) and (c), which allow for service to be effected directly through judicial officers, officials, or other competent persons or any person interested in a judicial proceeding to effect service directly through the judicial officers, officials, or other competent persons. Shen’s request for letters rogatory fall within Articles 10(b) and (c) and because China has opposed those Articles, the request is improper. Instead, Shen must serve the foreign Cross-Defendants through China’s designated Central Authority in accordance with the Hague Convention. Thus, the Motion is DENIED. Moving party to give notice.
10.	30-2025-01518369 Chadwick vs. General Motors, LLC	1. Motion for Attorney Fees Plaintiffs Karyssa and Jeffrey Chadwick (“Plaintiffs”) move for an order awarding them attorney fees pursuant to Civil Code section 1794(d), in the amount of \$14,665, along with costs/expenses of \$648.48, plus a lodestar multiplier of 20% (\$2,933) against defendant General Motors LLC (“Defendant”). Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “As the plain wording of section 1794, subdivision (d) makes clear, the trial court is ‘to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.’ ” (<i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 247.) “Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended

		and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.’ ” (<i>Ibid.</i>) This action was filed in October 2025. The parties engaged in streamlined AB 1755 initial disclosures and began to coordinate deposition dates. There was no motion practice and no depositions were taken. Counsel billed a total of 19.7 hours over the span of the litigation, and also requests fees for an additional 6.5 hours of anticipated time in connection with this motion. Tim Whelan is a partner with over 18 years of experience and seeks an hourly rate of \$600. Aliaksandra Vlitskaya is a partner with over 11 years of experience and seeks an hourly rate of \$550. Defendant objects to these hourly rates. Based on the Court’s experience with Song-Beverly actions and knowledge of the prevailing rates for similar cases in Orange County, the Court finds the rates to be high. The Court finds that hourly rates of \$500 per hour for attorney Whelan and \$400 for attorney Vlitskaya are appropriate in this case. As to the amount of time expended, the Court agrees with Defendant that the time requested in anticipation of reviewing the opposition, preparing a reply and attending the hearing on the fee motion is excessive. The Court finds that the amount of anticipated time for the reply and hearing should be reduced from 6.5 hours down to 3 hours of Vlitskaya’s time. The Court finds the remaining time for tasks to be reasonably incurred and recoverable. Defendant argues all prelitigation time before the Complaint was drafted and filed should be stricken as unrecoverable overhead. However, section 1794(d) expressly provides that a prevailing buyer may recover attorney’s fees that were reasonably incurred “in connection with the commencement and prosecution of such action.” The prelitigation time spent on intake of the case was incurred in connection with the commencement of this action and is therefore recoverable. As to costs, the only disputed item is electronic filing and service fees of \$103.48. Plaintiffs have submitted invoices in connection with their reply showing that the costs were actually incurred, and they appear reasonable. Accordingly, the Court will award the full \$648.48 in costs requested. The Court declines to award a lodestar multiplier, as the Court does not find that the case was particularly complicated or that it involved any novel questions of law. In light of the above, Plaintiffs’ Motion for Attorney Fees is GRANTED in the reduced amount of \$9,590 in fees (5.1 hrs at \$500/hr + 17.6 hrs at \$400/hr) and \$648.48 in costs, for a total award of \$10,238.48. Moving party to give notice.
11.	30-2024-01434147 Darling vs. SRPP III, LP	1. Motion for Leave to File Amended Complaint Plaintiffs Oriann Clair Darling and Lucas Budwig’s (“Plaintiffs”) Motion for Leave to File First Amended Complaint is GRANTED pursuant to Code of Civil Procedure sections 473 and 576. Pursuant to Code of Civil Procedure section 473, subdivision (a), the court may, “in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any